

TAB 14



Board of Education Report

File #: Rep-045-25/26, **Version:** 1**Agenda Date:** 9/16/2025**In Control:** Facilities

Define and Approve the Bret Harte Preparatory Middle School Barrier Removal Project and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

Facilities Services Division and Division of Special Education

Brief Description:

(Define and Approve the Bret Harte Preparatory Middle School Barrier Removal Project and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein) Recommends definition and approval of a barrier removal project at Bret Harte Preparatory Middle School (Board District 1, Region South) and the amendment of the Facilities Services Division Strategic Execution Plan to incorporate therein with a budget of \$448,914; and authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the Project including budget modifications and the purchase of equipment and materials.

Action Proposed:

- 1) Define and approve the Bret Harte Preparatory Middle School (School) Barrier Removal Project (Project) and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The budget for the proposed Project is \$448,914.
- 2) Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the Project including budget modifications and the purchase of equipment and materials.

Background:

On October 10, 2017, the Board approved the Transition Plan under the Americans with Disabilities Act (ADA) to further Los Angeles Unified efforts to comply with ADA Title II program accessibility requirements. The Transition Plan outlined Los Angeles Unified's proposed approach to providing program accessibility, which considers the characteristics of Los Angeles Unified, student population, variety of educational programs, as well as the existing level of accessibility. The Transition Plan established a specific approach and goals for achieving program accessibility within eight years through facility modifications and operational means.

A need to accommodate students and staff with disabilities to access buildings at the School has been identified. Facilities staff were previously delegated authority to execute and expend Bond Program funds for Rapid Access Program (RAP) projects in response to an individual student's need for programmatic access. These types of projects require minor installments and adjustments to facilities to ensure a barrier-free learning environment, do not require Division of the State Architect (DSA) approval and thus can be completed "rapidly" with a budget that does not exceed \$250,000. The proposed Project does not meet the parameters of the RAP due to its scope and budget. As such, the staff is presenting the proposed Project to the Board for approval.

The School site spans 13.46 acres and is comprised of a traditional middle school program. The building area is

In Control: Facilities

approximately 216,767 square feet and includes eight multi-story permanent buildings and eight single-story permanent buildings. The permanent buildings were constructed between 1929 and 1977. As of the 2024-2025 E-CAR, the school serves approximately 453 students and currently 96 students have been identified as having a disability.

The site has been assigned a Category Three accessibility level. To meet the criteria for Category Three, upgrades to one building are required including the reconfiguration of the nurse's office restrooms in the Administration building to provide an accessible restroom and an all-gender restroom, and any other required improvements or mitigations to ensure compliance with local, state and/or federal facilities requirements. Construction is anticipated to begin in the second quarter of 2026 and be completed in the fourth quarter of 2026.

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens' Oversight Committee (BOC) at its meeting on September 04, 2025, as referenced in Exhibit B. The presentation that was provided is included as Exhibit C. Staff have concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

Expected Outcomes:

Define and approve the Project and adopt the proposed amendment to the Facilities SEP to incorporate therein. Approval will authorize staff to proceed with the implementation of the proposed Project.

Board Options and Consequences:

Adoption of the proposed action will authorize staff to proceed with the expenditure of Bond Program funds to immediately implement the proposed Project.

If the Board does not approve the proposal, staff will be unable to initiate the barrier removal project which is required for compliance with Section 504 of the Rehabilitation Act and the ADA.

Policy Implications:

The proposed action will advance the Los Angeles Unified 2022-2026 Strategic Plan Pillar 4 Operational Effectiveness Modernizing Infrastructure by implementing accessibility improvements.

Any potential future room changes by Administrators or Principals will be reviewed by the Division of Special Education, the ADA Compliance Administrator, and the Facilities Services Division to ensure that new accessibility problems are not created as a result of the classroom moves. This will be done in close coordination with school staff to ensure disruptions are minimized.

Budget Impact:

The total budget for the proposed Project is \$448,914 and will be funded with Bond Program funds earmarked specifically for ADA Transition Plan Implementation.

The budget was prepared based on the current information known, and assumptions about the scope, site conditions, and market conditions. The budget will be reviewed throughout the planning, design, and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of the proposed Project.

In Control: Facilities**Student Impact:**

The proposed Project will remove barriers to program accessibility for approximately 450 current and future students and qualified members of the community and ensure that all have an equal opportunity to access programs and activities at this campus.

Equity Impact:

Facilities staff work to coordinate Los Angeles Unified efforts under the ADA to ensure programs are accessible by students, parents, and community members with disabilities.

Issues and Analysis:

Both Title II of the ADA and Section 504 of the Rehabilitation Act of 1973 impose broad-reaching prohibitions against discrimination on the basis of disability. As to facilities, a key requirement for both the ADA and Section 504 is program accessibility: programs, benefits, services, and activities provided by public entities must be accessible to people with disabilities. This means that a qualified individual with a disability is not to be discriminated against because the entity's facilities are inaccessible; however, this does not necessarily mean that all facilities must be accessible. While both laws do require that newly constructed and altered facilities meet stringent accessibility requirements, they do not require that all existing facilities meet those standards, so long as the programs and services provided in those facilities are made accessible to people with disabilities. A program or service can be made accessible by relocating it, providing it in a different manner, or utilizing some other strategy to ensure that people with disabilities have an equal opportunity to benefit from the entity's programs and activities. This proposed Project is in alignment with Los Angeles Unified's implementation of the Board-approved Self-Evaluation and Transition Plan.

The School has been assigned a Category Three accessibility level pursuant to the Transition Plan. Staff considered the possibility of reprioritizing the schools on the Transition Plan list and proposing a more robust scope that would address all programmatic access requirements. However, it was determined that reconfiguring the nurse's office restrooms in the Administration building to provide an accessible restroom and an all-gender restroom would provide students and staff direct access to the building. Additional accessibility improvements could be undertaken under new projects at a later date, as anticipated under the Transition Plan.

The Office of Environmental Health and Safety (OEHS) will evaluate the proposed Project in accordance with the California Environmental Quality Act (CEQA).

Attachments:

Exhibit A - Student Eligibility by Program at Bret Harte Preparatory Middle School

Exhibit B - BOC Resolution

Exhibit C - BOC Presentation

Informatives:

None

Submitted:

08/21/25

File #: Rep-045-25/26, Version: 1
In Control: Facilities

Agenda Date: 9/16/2025

RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED BY:


KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


KURT E. JOHN
Deputy Chief Financial Officer

☒ Approved as to budget impact statement.

PRESENTED BY:


ISSAM DAHDUL
Director of Facilities
Planning & Development
Facilities Services Division

Student Eligibility by Program

Disability Category	Bret Harte Preparatory Middle School
Autism (AUT)	22
Deaf-Blindness (DB)	<11
Deafness (DEAF)	<11
Emotional Disturbance (ED)	<11
Established Medical Disability (EMD)	<11
Hard of Hearing (HH) / Hearing Impairment (HI)	<11
Intellectual Disability	<11
Multiple Disabilities (MD)	<11
Orthopedic Impairments (OI)	<11
Other Health Impairments (OHI)	16
Specific Learning Disability (SLD)	43
Speech or Language Impairment (SLI)	<11
Traumatic Brain Injury (TBI)	<11
Visual Impairment (VI)	<11
Grand Total	96

To ensure confidentiality of individual student results and compliance with Los Angeles Unified policy and State guidelines, data is suppressed if the number of students included in calculations is less than 11.

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE

D. Michael Hamner, FAIA, Chair
American Institute of Architects
Robert Campbell, Vice-Chair
L.A. Co. Auditor-Controller's Office
Dr. Samantha Rowles, Secretary
LAUSD Student Parent
Patrick MacFarlane, Executive Committee
Early Education Coalition
Scott Pansky, Executive Committee
L.A. Area Chamber of Commerce

Joseph P. Buchman – Legal Counsel
Burke, Williams & Sorensen, LLP
Lori Raineri and Keith Weaver – Oversight Consultants
Government Financial Services Joint Powers Authority

Bevin Ashenmiller
Tenth District PTSA
Neelura Bell
CA Charter School Association
Sandra Betts
CA Tax Reform Association
Chad Boggio
L.A. Co. Federation of Labor AFL-CIO
Charlotte Lerchenmuller
Assn. of CA School Admin. - Retired
Aleigh Lewis
L.A. City Controller's Office

Jennifer McDowell
L.A. City Mayor's Office
Brian Mello
Assoc. General Contractors of CA
William O. Ross IV
31st District PTSA
Rachelle Anema (Alternate)
L.A. Co. Auditor-Controller's Office
Ashley Kaiser (Alternate)
Assoc. General Contractors of CA
Vacant
LAUSD Student Parent

Timothy Popejoy
Bond Oversight Administrator
Perla Zitle
Bond Oversight Coordinator

RESOLUTION 2025-37**BOARD REPORT 045-25/26**

**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE BRET HARTE
PREPARATORY MIDDLE SCHOOL BARRIER REMOVAL PROJECT AND AMEND
THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO
INCORPORATE THEREIN**

WHEREAS, Los Angeles Unified School District (District) Staff proposes that the Board of Education (Board) define and approve the Bret Harte Preparatory Middle School (School) Barrier Removal Project (Project) to support the implementation of the Board approved Self-Evaluation and Transition Plan (Transition Plan) under the Americans with Disabilities Act (ADA), and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) accordingly; and

WHEREAS, District Staff also requests that the Board authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the Project including budget modifications and the purchase of equipment and materials; and

WHEREAS, A need to accommodate students and staff with disabilities to access buildings at the School has been identified. Facilities staff were previously delegated authority to execute and expend Bond Program funds for Rapid Access Program (RAP) projects in response to an individual student's need for programmatic access. These types of projects require minor installments and adjustments to facilities to ensure a barrier-free learning environment, do not require Division of the State Architect (DSA) approval, and thus can be completed "rapidly" with a budget that does not exceed \$250,000. The proposed Project does not meet the parameters of the RAP due to its scope and budget. As such, the staff is presenting the proposed Project to the Board for approval; and

WHEREAS, The School site spans 13.46 acres and is comprised of a traditional middle school program. The building area is approximately 216,767 square feet and includes eight multi-story permanent buildings and eight single-story permanent buildings. The permanent buildings were constructed between 1929 and 1977. As of the 2024-2025 E-CAR, the school serves approximately 450 students and currently 96 students have been

RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE BRET HARTE PREPARATORY MIDDLE SCHOOL BARRIER REMOVAL PROJECT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN

identified as having a disability. The site has been assigned a Category Three accessibility level. To meet the criteria for Category Three, upgrades to one building are required including the reconfiguration of the nurse's office restrooms in the Administration building to provide an accessible restroom and an all-gender restroom, and any other required improvements or mitigations to ensure compliance with local, state and/or federal facilities requirements. Construction is anticipated to begin in the second quarter of 2026 and be completed in the fourth quarter of 2026; and

WHEREAS, The total budget for the proposed Project is \$448,914 and will be funded by Bond Program funds earmarked specifically for ADA Transition Plan Implementation; and

WHEREAS, the District's Office of the General Counsel has reviewed the proposed Projects and determined that they may proceed to the School Construction Bond Citizens' Oversight Committee (BOC) for consideration and recommendation to the Board of Education; and

WHEREAS, District Staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Bond Citizens' Oversight Committee recommends that the Board define and approve the Bret Harte Preparatory Middle School Barrier Removal Project and amend the Facilities SEP accordingly, as described in Board Report No. 045-25/26, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Bond Oversight Committee's website.
3. Los Angeles Unified is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District.

ADOPTED on September 4, 2025, by the following vote:

AYES: 11

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 3

/Michael Hamner/

D. Michael Hamner
Chair

/Robert Campbell/

Robert Campbell
Vice-Chair

Bret Harte Preparatory Middle School

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Barrier Removal Project

Exhibit C - BOC Presentation
Board Report No. 045-25/26



**Bond Oversight Committee Meeting
September 4, 2025**



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- October 10, 2017: Board approved the Self-Evaluation and Transition Plan (Transition Plan) under the Americans with Disabilities Act (ADA) to further Los Angeles Unified efforts to comply with ADA Title II program accessibility requirements
- Under the Transition Plan each school is assigned to one of three levels of accessibility, and schools requiring accessibility improvements are prioritized for project development
- Accessibility level assignments and project prioritization is based on an assessment of more than two dozen criteria including:
 - o School programs
 - o Matriculation options
 - o Feeder Pattern
 - o Geographic location
 - o Known (or anticipated/matriculating) population of students with disabilities or parents/guardians with disabilities
 - o Type of instructional model
 - o Public input

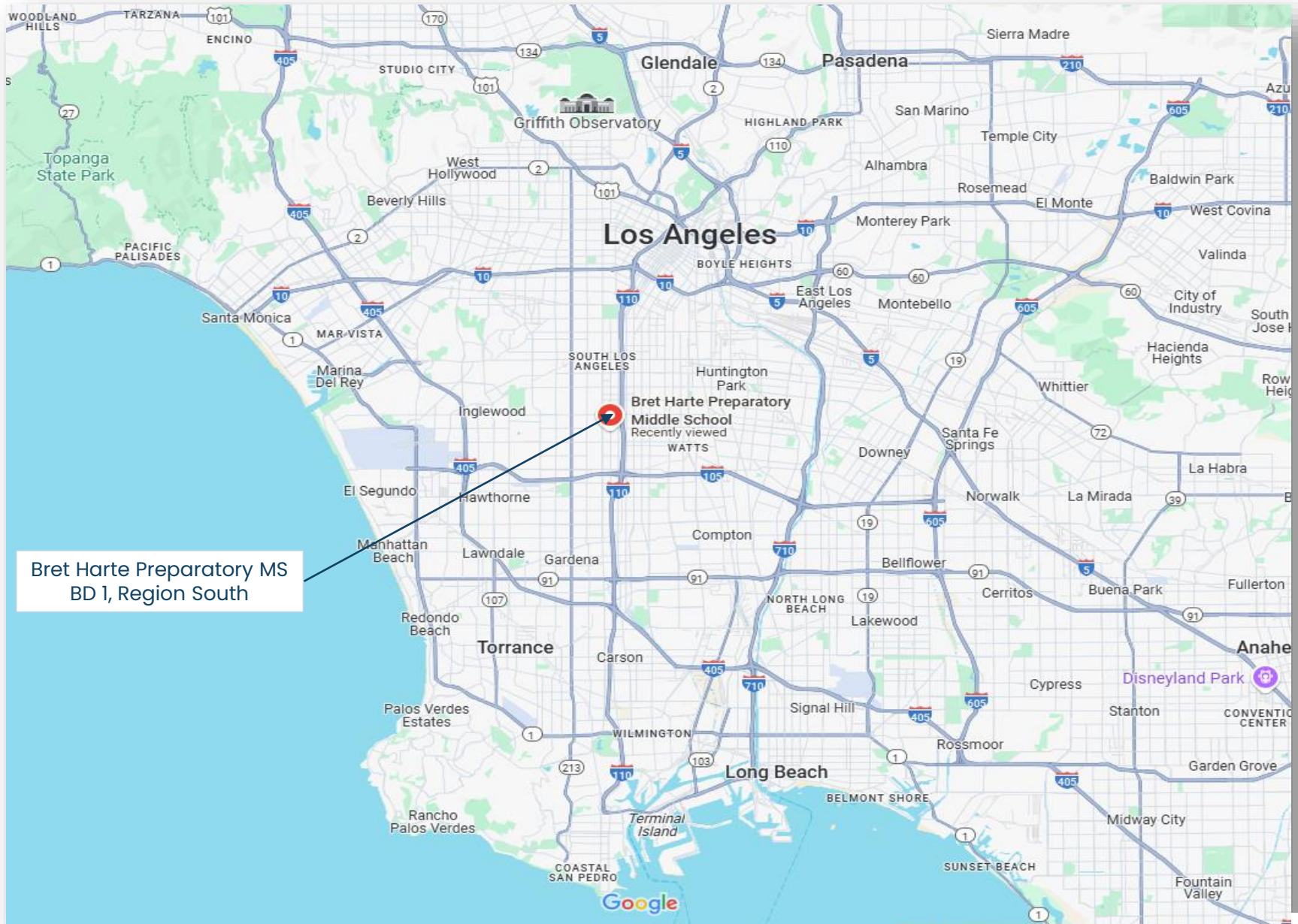
Background (*Continued*)

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- Levels of Accessibility
 - Category One: Schools with highest level access
 - Generally, in accordance with applicable physical accessibility standards
 - 1A: “full accessibility” schools -- built to new construction standards
 - 1B: “high accessibility” schools -- altered with some limited exceptions
 - Category Two: “Program-Accessible” schools
 - Core spaces and features will be accessible
 - Program accessibility will be provided to all programs and activities at the school
 - Category Three: “Core Access” schools
 - A basic level of access will be provided for core buildings and certain common spaces
- Accessibility enhancement projects are developed only for those schools that do not yet meet their assigned category/level of accessibility and thus require facilities improvements

Project Location Map

630



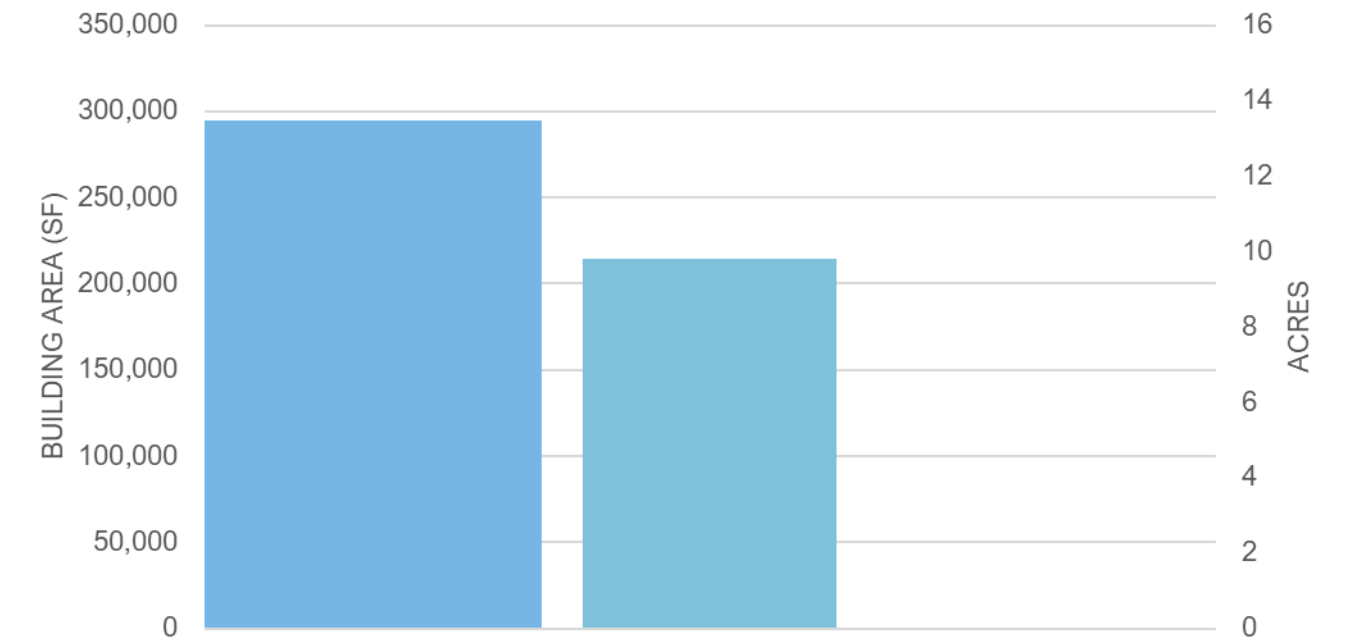
620

Category Overview

School	Project Budget	Category
Bret Harte Preparatory MS	\$448,914	3 (Barrier Removal)
TOTAL	\$448,914	

Building Area and Acres

632



Bret Harte Preparatory MS	
Building Dates:	1929-1977
Schools / Programs:	1
Student Enrollment*:	453
Budget:	\$448,914
*Source: E-CAR Reports 2024-25	

Student Eligibility by Program

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Bret Harte Preparatory Middle School

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General Scope:

- Barrier removal

Scope Includes:

- Reconfiguration of the nurse's office restrooms in the Administration building to provide an accessible restroom and an all-gender restroom

Project Budget: \$448,914

- | | |
|------------------------|-------|
| • Site & Environmental | 0.0% |
| • Plans | 14.5% |
| • Construction | 74.9% |
| • Management | 4.7% |
| • Other/Reserve | 5.9% |

Project Schedule:

Construction Start: Q2-2026

Construction Completion: Q4-2026



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Questions ?